

Court No. - 38

Case :- WRIT - C No. - 31617 of 2018

Petitioner :- Chetendra Singh

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Sarvajeet Singh

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore

Hon'ble Abhinava Upadhyay,J.

Hon'ble Rajiv Gupta,J.

Heard learned counsel for the petitioner, learned Standing Counsel appearing for the State-respondent no.1 and Sri Kapil Dev Singh Rathore, learned counsel appearing for respondent no.2.

By means of this writ petition, the petitioner is challenging the demand notice dated 30.3.2017 for a sum of Rs. 1,40,282/- towards electricity dues.

Learned counsel for the petitioner submits that the petitioner has been paying the bill regularly and has even paid the excess amount but a demand of such huge amount is being pressed. There appears to be a dispute of electricity dues for which the petitioner has remedy of approaching the Executive Engineer under Paragraph 6.5 of the Electricity Supply Code, 2005.

In case, the petitioner files such an application within a week from today before the Executive Engineer, the same shall be considered and decided by it, in accordance with law, as far as possible, within a period of one month from the date a certified copy of this order is presented before the authority concerned.

With the aforesaid direction/observation, the writ petition stands finally disposed of.

Order Date :- 18.9.2018

SKM

(Rajiv Gupta,J.) (Abhinava Upadhyay,J.)